

TAB 6



Board of Education Report

File #: Rep-016-24/25, **Version:** 1

Authorization to Negotiate and Execute a Lease Renewal for Early College Academy - LA Trade Technical College at Los Angeles Trade Technical College

August 13, 2024

Facilities Services Division

Action Proposed:

Authorize the Chief Facilities Executive and/or her designee, to negotiate and execute a lease for the Early College Academy- LA Trade Technical College's (ECA-LATTC) exclusive use of approximately 12 classrooms/lab rooms, storage rooms, and office spaces at the Los Angeles Community College District's (LACCD) Los Angeles Trade Technical College (LATTC) campus. The proposed lease renewal is for a period of five years.

Background:

In August 1994, Jefferson High School no longer had the capacity to accommodate its Early College Academy Program (ECA). In order to accommodate the student demand, the Los Angeles Unified School District (LA Unified) entered into a lease with LACCD for ECA's use of classroom space at LATTC, located at 400 West Washington Boulevard in the City of Los Angeles, and relocated the ECA to the community college campus. In February 2013, the Board of Education (Board) officially established ECA-LATTC as a pilot school. Since that time, ECA-LATTC has operated as a standalone high school, open to all LA Unified students. ECA-LATTC is located in Region East and Board District 5 (Jackie Goldberg).

ECA-LATTC currently serves nearly 225 students in 9th through 12th grade. ECA-LATTC provides students from all backgrounds with a myriad of skill levels, with access to a personalized academic environment geared toward maximizing each student's potential. ECA-LATTC is organized to ensure that students are enrolled in the A-G sequence of courses to insure eligibility to public four-year postsecondary institutions in California. District teachers provide high school students with the majority of the required A-G core classes. However, requirements for art, health, physical education, and elective credits are typically satisfied through classes provided through LATTC. ECA-LATTC's location on a two-year college campus provides its students with access to academic, technical, and professional education opportunities that are not typically offered by the District.

The basic terms of the proposed agreement would include a term of five years and the right by LATTC to terminate the agreement should the space be needed for its academic programs. The annual rent is \$310,485 and includes utilities, designated staff parking and non-exclusive use of common areas. During the previous lease, the building originally occupied by ECA-LATTC was damaged due to a fire and the program was relocated to a temporary location at LATTC. Although the previous lease expired on June 30, 2022, LATTC allowed ECA-LATTC to continue in occupancy in the temporary location until a permanent location can be identified and a new lease was executed. LACCD has recently informed LA Unified the temporary location will now become the permanent location for the ECA-LATTC program, and a lease renewal can be brought forward for approval. Therefore, the term of the lease is from July 1, 2022 - June 30, 2027. To date, funds for payment of the rent have been encumbered.

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Expected Outcomes:

Staff anticipates that the Board will authorize staff to negotiate and execute a lease that will allow ECA-LATTC to continue to operate on LATTC's campus for a period of five years.

Board Options and Consequences:

A "yes" vote by the Board will authorize the Chief Facilities Executive or her designee to negotiate and execute a lease for ECA-LATTC at LATTC for a period of five years. ECA-LATTC will continue to operate the school at LATTC, and the students will continue to benefit from access to academic, technical, and professional education opportunities that are not typically offered by the District.

A "no" vote will result in LATTC not renewing the lease and ECA-LATTC will have to vacate the space at LATTC and find a new location to run its program. The students of ECA-LATTC may not benefit from the exclusive programs offered due to the location of ECA-LATTC on the LATTC campus.

Policy Implications:

This action supports LA Unified policy, practice, and the 2022-26 Strategic Plan Pillar 3 Engagement and Collaboration Leading for Impact by increasing the number of partnerships with local community colleges.

Budget Impact:

Annual rent for the premises is \$310,485. Funding for this lease will be provided from the General Fund Program code 5120. Funds for this purpose have been budgeted for the 2024-25 fiscal year.

Student Impact:

Continued access to unique programs made available as a result of ECA-LATTC's location and partnership with LATTC.

Equity Impact:

The existing school site will be made available to all students that would like to have the opportunity to obtain dual enrollment.

Issues and Analysis:

Pursuant to Education Code section 81378.1(c), the agreement will include, as a condition of the lease, a provision that the agreement shall be subject to renegotiation and may be rescinded by LACCD after 60 days' notice to LA Unified if LACCD's governing board determines that the space being occupied by ECA-LATTC is needed for LATTC's academic program. Should LACCD decide to terminate the lease during mid-semester, LA Unified will work with LACCD to allow students to finish the school year, or at a minimum the current semester, to allow students to matriculate into LACCD as they graduate. LA Unified staff will also include additional termination language in the agreement that will permit either LACCD or LA Unified to terminate the lease agreement without cause, at the end of a LA Unified school year after 180 days' notice to the other party.

Attachments:

None

Informative:

None

Submitted:

07/17/24

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RESPECTFULLY SUBMITTED,

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